ROB BONTA, State Bar No. 202668
Attorney General of California
ELIZABETH S. ANGRES, State Bar No. 179523
Supervising Deputy Attorney General
HAIYANG A. LI, State Bar No. 288063
Deputy Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendant
State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONZALEZ (#023295); OFFICER MELANO (#023054),** Defendants.	Case No. 2:25-cv-01460-DC-CSK **DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANTS' MOTION TO DISMISS** Date: January 27, 2026 Time: 10:00 a.m. Courtroom: 25 Judge: Judge Chi Soo Kim Trial Date: Not Set Action Filed: May 27, 2025

PLAINTIFF DOES NOT OPPOSE DISMISSAL OF HIS OFFICIAL CAPACITY AND MONELL CLAIMS, NOR DOES PLAINTIFF OPPOSE DEFENDANTS' MOTION TO STRIKE.

Plaintiff agrees to withdraw both his *Monell* claim and his official capacity claims as well as dismiss State of California as a defendant with prejudice. Plaintiff's Opposition to Defendants' Motion to Dismiss ("Opposition"), Dkt. No. 16, p.15:16-26. Although Plaintiff contradicts himself later in the Opposition by stating that he consents to dismissal of the *Monell* claims *without* prejudice, *id.* at p. 16:23-24, Defendants respectfully request that the Court grant the Motion to Dismiss as to Plaintiffs' official capacity claims and *Monell* claim *with prejudice* based upon Plaintiff's non-opposition and the arguments set forth in the motion to dismiss.

Plaintiff further agrees to "voluntarily drop" his punitive damages request and his request for attorneys' fees. *Id.* at p.17:20-21; p.18:8-9. Therefore, Defendants' Motion to Strike should be granted in its entirety.

TAKING THE WELL-PLEADED ALLEGATIONS WITHIN THE COMPLAINT AS TRUE, PLAINTIFF'S FOURTH AND FOURTEENTH AMENDMENT CLAIMS ARE SUBJECT TO DISMISSAL.

I. THE ALLEGATIONS WITHIN THE COMPLAINT SHOW THAT PROBABLE CAUSE EXISTED AT THE TIME OF PLAINTIFF'S SEARCH AND ARREST.

Although Plaintiff claims, without any factual support, that the initial welfare check on Plaintiff was "pretextual," the Opposition concedes that the alleged seizure of Plaintiff did not begin until one officer stated that he believes there was booze in a cup in Plaintiff's vehicle and ordered Plaintiff out of his vehicle for field sobriety tests. (Opposition p.3:26-p.4:11.)

Taking all well-pleaded factual allegations within the Complaint as true, no constitutional violation exists. Although the Opposition argues that Defendants Gonzalez and Melano's (collectively "Individual Defendants") "warrantless entry [into Plaintiff's car] and their "search [of the car] lacking probable cause[,] *id.* at p.4:6, violated Plaintiff's Fourth and Fourteenth Amendment rights because "a cup

in a parked car is not contraband, and speculation about its contents is not a lawful basis for a search and seizure[,]" Plaintiff's argument fails to consider several key facts supporting the existence of probable cause justifying both the search of Plaintiff's car and Plaintiff's arrest at the time of the incident *Id.* at p.4:3-5.

First, as alleged in the Complaint, Individual Defendants encountered Plaintiff's vehicle on the side of the freeway after midnight with Plaintiff "resting" inside. Complaint ¶ 10. Second, the Complaint alleges that Individual Defendants searched Plaintiff's vehicle after conducting field sobriety tests on Plaintiff. Complaint ¶¶ 14-15. Therefore, a fair reading of facts alleged in the Complaint show that Individual Defendants' search of Plaintiff's vehicle was justified by their observations of Plaintiff before the search and Plaintiff's performance on field sobriety tests, not only by what looked like a container of booze in Plaintiff's vehicle. Under these circumstances, the well-plead allegations within the Complaint do not establish a constitutional violation.

II. THE CONCLUSIONS OF LAW AND CONCLUSORY ALLEGATIONS WITHIN THE COMPLAINT ARE NOT ENTITLED TO THE PRESUMPTION OF TRUTH ON A MOTION TO DISMISS.

Plaintiff argues that Defendants' Motion to Dismiss relies on facts that are contradicted by the Complaint, which is improper at the Motion to Dismiss stage. Opposition p.11:3-11. Specifically, the Opposition states that "[In the Complaint], Plaintiff alleges that the officers' suspicions were based on nothing more than a speculative remark about a cup. that the cup turned out not to contain alcohol, that any odor of alcohol is a fabrication, and that an empty can was found only as a result of the unlawful search (not in plain view) ...[.]" *Id.* at 11:11-15. A review of the Complaint shows that none of these allegations actually appear in the Complaint and the Opposition provides no citations showing otherwise. In fact, the Complaint appears to directly contradict the Opposition's assertion that "an empty can was found only as a result of the unlawful search (not in plain view) …" as Paragraph 11 of the Complaint alleges that, "upon observing a upon observing [sic] a cup in

the center console, [an officer] stated, 'I think it's booze,' to which the other officer replied, 'Yeah?'" Complaint ¶ 11. Furthermore, even had Plaintiff alleged in his Complaint that "any odor of alcohol is a fabrication" or that "the officers' suspicions were based on nothing more than a speculative remark about a cup," such allegations would not be entitled to the presumption of truth for purposes of a Motion to Dismiss as they are "mere conclusions" unsupported by specific facts. *Ashcroft v. Iqbal*, 556 U.S. 662, 663 (2009). For example, the Opposition's assertion that "the officers' suspicions were based on nothing more than a speculative remark about a cup" is demonstratively false, as the Complaint also alleges that Individual Defendants first encountered Plaintiff while he was "resting" in his vehicle on the side of the freeway after midnight. Complaint ¶ 10.

Plaintiff's allegation within the Complaint that "[n]o evidence of intoxication or illegal activity was found" is also not subject to the presumption of truth for the same reason. Complaint ¶ 16. To satisfy the standard set in *Iqbal* for well-pleaded allegations, Plaintiff must provide specific facts showing that no evidence of intoxication was found. *Iqbal,* 556 U.S. at 664. ("While legal conclusions can provide the complaint's framework, they must be supported by factual allegations.") Notably, the Opposition also fails to respond to Defendants' question within the moving papers of just *how* Plaintiff knew that he did not display any signs of intoxication as the Complaint is bereft of any specifics regarding Plaintiff's performance on the field sobriety tests or his interaction with Individual Defendants.

DEFENDANTS ARE ENTITLED TO QUALIFIED IMMUNITY AS PLAINTIFF FAILED TO SHOW THAT DEFENDANTS VIOLATED "CLEARLY ESTABLISHED" LAW.

As stated in the moving papers, even had there been a constitutional violation, Individual Defendants would still be entitled to qualified immunity because they did not violate any clearly established law. The Opposition fails to cite to any case law that would have put Individual Defendants on notice that their actions in this

situation were unconstitutionally "beyond debate." *District of Columbia v. Wesby*, 583 U.S. 48, 64 (2018). Instead, the Opposition states that the law on "arrests without probable cause has been clearly established for over fifty years" and that what Individual Defendants did here was "so obviously illegal" that prior case law with identical facts is not required. Opposition at 9:7-10;18-20. Plaintiff misunderstands the clearly established prong of qualified immunity. "Clearly established" law means precedent existing at the time of the conduct that "'squarely governs the specific facts' at issue," *Kisela v. Hughes*, 584 U.S.100, 104 (2018). "'[C]ourts must not define clearly established law at a high level of generality[.]'" *Wesby,* 583 U.S. at 63.

Here, stripped of Plaintiff's improper allegations that the search of his vehicle and his arrest were conducted without probable cause, the facts alleged in the Complaint show Plaintiff was arrested for DUI following field sobriety tests and questioning by Individual Defendants. This is not a case involving obvious illegal conduct by Defendants. As stated in the moving papers, the fact that a prosecutor declined to press charges against Plaintiff has no bearing on the qualified immunity analysis. Plaintiff has cited no authority to the contrary. Although Plaintiff claims that the Individual Defendants conducted a "warrantless, non-consensual search of a vehicle without probable cause, after the only suspicion (the cup) was dispelled" this is not the case. Opposition p.9:26-28. As shown by the allegations within the Complaint, Individual Defendants searched the vehicle after conducting field sobriety tests on Plaintiff and had more than the presence of the cup to establish probable cause. Moreover, the Opposition alleges that the cup (or can) was "not in plain view" and found only after the search. Opposition 11:14-15. Under these circumstances, even if Individual Defendants were mistaken as to the existence of probable cause to search Plaintiff's vehicle or arrest Plaintiff for DUI, they are still entitled to qualified immunity as they have not violated any clearly established law. The question of qualified immunity is appropriately decided on a Motion to

Dismiss as "[t]he entitlement is an immunity from suit rather than a mere defense to liability," and courts have "repeatedly have stressed the importance of resolving immunity questions at the earliest possible stage in litigation." *Hunter v. Bryant*, 502 U.S. 224, 227 (1991).

CONCLUSION

For the reasons stated above and in the moving papers, Defendants respectfully request that all of Plaintiff's claims within the operative Complaint be dismissed with prejudice.

Dated: January 5, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/Haiyang Allen Li

HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendant
State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

CERTIFICATE OF SERVICE

Case Name: **Brendan N. Newanforbi v. State of California, et al.** No. **2:25-cv-01460-DC-CSK**

I hereby certify that on January 5, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANTS' MOTION TO DISMISS

I certify that **all** participants in the case are registered CM/ECF users and that service will be accomplished by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on January 5, 2026, at Los Angeles, California.

Adriana Zagal	
Declarant	Signature

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